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Foreman Might Miss Ray Trial Due to Illness

MEMPHIS, Tenn—(UPI)—A criminal court judge said Friday he wants the trial of James Earl Ray to start March 3, "if humanly possible," and directed a public defender to represent Ray if ailing attorney Percy Foreman is unable to do so.

Criminal Court Judge W. Preston Battle opened a hearing, held to determine the defense's readiness for trial, but saying he had been advised by telegram from Houston that Foreman, Ray's chief counsel, was ill with pneumonia.

Ray is charged with the April 4, 1968, sniper slaying of Dr Martin Luther King Jr. The defendant sat quietly during the brief, five-minute hearing while Battle questioned Shelby County public defender Hugh Stanton Sr on what steps had been takn to prepare the Ray case.

"We have gathered some material, enough to show us that there is more work to be done," said the 72-year-old Stanton. "I can't say yet whether we will be prepared for trial by March 3."

"I want to start the Ray trial on March 3 if humanly possible," Battle commented. "I'm ordering that your office prepare this case in such a manner that if it becomes necessary you could take full charge."

He then ordered Stanton to report again on Feb 14 whether the defense would be able to meet the deadline.

Garrison Seeking Indefinite Delay In Trial of Shaw

NEW ORLEANS — (UPI) — District Atty Jim Garrison, accusing Atty Gen Ramsey Clark of thwarting "the ends of justice," asked for another delay Friday in the trial of Clay Shaw on charges of conspiring to assassinate President John F. Kennedy.

Garrison's office said the trial could not proceed until the prosecutors secure photographs and x-rays of the Kennedy autopsy and the clothes Mr Kennedy was wearing when murdered in Dallas Nov 22, 1963.

THE TRIAL had been set to start Tuesday, nearly two years after Shaw was arrested. District Judge Edward A. Haggerty Jr set a hearing for 10 AM CST Monday on Garrison's request for a delay.

Clark said Thursday night a panel of doctors had viewed the secret x-rays and photographs and agreed with the Warren Commission that Mr Kennedy was shot from behind.

Judge Charles W. Halleck of the District of Columbia Court of General Sessions told a Garrison assistant in Washington Friday the "materiality and necessity for having these photos and x-rays" would have to be proven before he would order the National Archives to turn them over.

THEY ARE supposed to be kept secret until 1971 at the request of Mr Kennedy's widow.

Halleck said he wanted Garrison's office to produce proof "that would indicate this is not just a fishing expedition."

"In the event the federal government does not honor our subpoenas and blocks our attempts to present all the evidence, this case cannot be brought to trial," Assistant District Atty James Alcock told newsmen before Halleck announced his decision.

● AUSTIN —(UPI)— Texas Secretary of State Roy Barrera refused to turn a Walker County man over to Louisiana authorities on burglary charges Friday, saying they really wanted him for questioning about President John F. Kennedy's assassination.

Louisiana Gov John McKeithen asked Texas officials last May to extradite James Richard Clements to face charges on a 1961 Lake Charles burglary.

"I just sat on this for a long time to see what would happen. I haven't gotten any response," Barrera said. "But I think he (Clements) was wanted for some questioning in regard to their investigation of the assassination of President Kennedy."

Clements was charged with burglarizing a machine and welding shop in Calcasieu Parish and stealing $1,232 worth of tools.

HEAD BONE CONNECTED TO THE . . .

His friends call him Number 662, and researcher Arthur Pugh is holding his two-and-a-half-foot long head, the smallest part of this Diplodocus' body. The Junior League bought the fossils from the Cleveland Museum. Bob Atwell and J. H. Rose transported the dinosaur from the Rocky Mount Children's Museum in North Carolina where he had been kept for the past 10 years. Some 65 pieces are in the shipment, and the big femur, (thigh bone) is six feet long and weighs about 250 pounds. Interested citizens may visit Pugh's warehouse at 5809 Southwest Freeway weekdays from about 8:30 AM to 5:30 PM to watch the work of assembling, molding and making new parts to complete the animal for the Museum of Natural Science. But there's no hurry — it will take about two years to finish the job. The fossils were found in 1903 at Red Fork, Powder River, Wyoming, by Dr W. W. Utterbach, and have never been reassembled. Pugh was picked by Dr T. M. Pulley of the Houston museum to do the job. —Post Photo by Fred Bunch

In Medical Research

Rabbits Aiding Scientists

BAR HARBOR, Maine — (AP) — Research on organ transplants, birth defects, most diseases, and drugs promises to benefit from the development of virtually identical rabbits.

Strains of identical mice have done yeoman service in many health research projects, but their limited life and size have prevented applications now anticipated with the rabbits bred at the Jackson Laboratory in Bar Harbor.

DR CHEN K. CHAI of the laboratory announced Friday that 15 years of work have led to rabbits identical in more than 99 per cent of their genes, the controlling units of heredity.

Many attempts at establishing inbred strains have faltered when the rabbits became sterile after several generations of inbreeding, he said, but the Jackson strains have involved successful brother and sister matings through 20 generations, the total regarded as adequate to insure that a strain has been established.

Chai said the feat has been accomplished twice. One set of identical rabbits has been designated the "B" strain and the other the "Y" strain. They total about 300 rabbits.

WITH ANIMALS whose inborn makeup is identical, researchers thus can conduct experiments with the confidence that any changes they note are due to the experiment rather than differences in the animals. Possible applications include:

● Tests on the effectiveness of new drugs, both to treat diseases and to calm the body's foreign-tissue resistance, the major obstacle to organ transplants.

● Detailed studies of the tissue rejection process by comparing how it operates in two identical animals who have received different transplanted organs.

● Studies into diseases where the longer life of the rabbits and their larger size makes them more valuable than mice. Rabbits, for example, are better subjects for research on glaucoma because their eyes are larger.

● Studies into birth defects as researchers use the availability of animals with essentially identical genes to learn more about the processes which control heredity.

Maybe The Clerk's Job Was Lacking

BROCKTON, Mass — (UPI) — Former State Police Sgt Lawrence Carter, who had been a personal aide of Gov John A. Volpe, was sworn in Monday as clerk of the Brockton District Court. He went to work Tuesday ano resigned Wednesday.

"Carter resigned for personal reasons and said he couldn't elaborate," Assistant Clerk David Stevens said.

State Waives Right To Challenge Sirhan Jury

LOS ANGELSS — (AP) — The prosecution startled the Sirhan Bishara Sirhan murder trial Friday by giving up its right to challenge further the 11 jurors tentatively seated.

This means that a jury to try the 24-year-old Jordanian on charges of murdering Sen Robert F. Kennedy could be permanently seated Tuesday, two weeks earlier than expected.

Superior Court Judge Herbert V. Walker called the prosecution's surrender of peremptory challenges "shocking." Peremptory challenges can be made without giving a reason.

THE CHIEF defense attorney, Grant B. Cooper, was granted an adjournment until Tuesday. He said he needed time to consider seating the jury as now constituted.

"Don't be surprised at what happens Tuesday," Cooper told newsmen later. "We just might have a jury."

Prosecution and defense both have 19 of 20 peremptory challenges remaining.

If the defense waives its remaining challenges, the 11 jurors will be permanently seated.

EARLIER FRIDAY, Walker granted a prosecution challenge to the temporary seating of Alvina Alvidrez, a hardware store employee in her 30s. Mrs Alvidrez said she couldn't vote for the death penalty under any circumstances.

The defense and prosecution seated the 11th juror and prosecutors used their first peremptory challenge.

They dismissed Alicia Duke, an accountant with the state lands division and a divorcee. She was the center of brief excitement when the court heard her son was missing.

The 10-year-old boy was later found to have been at his grandmother's home, and prosecutors said the incident had nothing to do with their challenge.

THE DEFENSE and the prosecution each have 20 peremptory challenges with which to dismiss any prospective juror without stating a reason.

Mrs Alvidrez was challenged as a tentative juror Wednesday when she told the court that "under no circumstances whatsoever" could she vote for a death penalty.

Sirhan's defenders, trying to keep him out of California's gas chamber, wanted her on the jury.

They cited a 1968 Supreme Court ruling known as the Witherspoon case, which held juries excluding persons opposed to capital punishment "constitute hanging juries."

But Judge Walker ruled Thursday that the Witherspoon case does not apply.

HE GRANTED the prosecution challenge, citing a week-old California Supreme Court ruling that a juror's unalterable opposition to the death penalty is "just and sufficient reason to be dismissed for cause."

Chief deputy prosecutor Lynn Compton said he expects the defense to use the ruling as the basis for an appeal should Sirhan be convicted of first-degree murder.

"Let the appellate court take it head-on," Compton told newsmen. "If they're going to dump the death penalty in California, let them do it on this case."

Beard Credited With Warding Off Colds

TOKYO — (AP) — Why do men grow beards?

A Japanese magazine, Rising Sun, conducted a survey and came up with a variety of explanations, including one that beards help ward off colds.

Kozo Masuda, 50, a famous Japanese chess player, said he used to catch colds regularly until he grew a beard and moustache several years ago.

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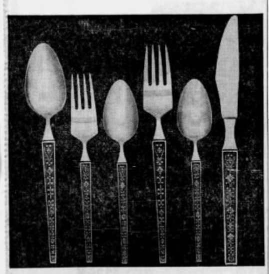
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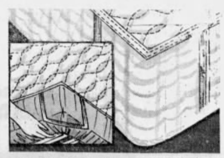
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